

Thompson v. Jameson.

confessed, and make such order and decree therein, as to them shall seem just, and may enforce due performance thereof, &c.

*284] "In the record of that case, in Fairfax county court, it is stated, "that at a court continued and held for the said county, on the 18th day of June, in the year last mentioned, came the complainants aforesaid, by their attorney, and thereupon, Jonah Thompson, in open court, became security that the said Joseph Hadfield shall perform the decree of this court, if against him; and on motion of the said defendant, Joseph Hadfield, by his attorney, the attachment is discharged as to the effects in the hands of the other defendants." The court, at a subsequent term, on the 19th of November 1799, decreed, that "it having appeared to the satisfaction of the court, that the complainant's bill hath been duly taken for confessed, after his appearance by attorney, and giving security for performing the decree against him, the court doth adjudge, order and decree, that the complainants do recover against the said Joseph Hadfield, the sum of eight hundred and sixty pounds, twelve shillings and one penny, sterling (to be settled in Virginia currency, at the rate of twenty per cent. exchange), together with interest on the same, at the rate of five per cent. per annum, from the 8th day of March 1795, until the day of pronouncing this decree, and also his costs by him expended in the prosecution of his bill here."

Hadfield having failed to perform this decree, and Brown, the partner of Jameson, being dead, Jameson brought the present action of debt, in the circuit court of the district of Columbia, against Thompson, founded upon his responsibility as security for Hadfield's performing the decree. The declaration was "of a plea that he render unto him the sum of eight hundred and sixty pounds, twelve shillings and one penny, sterling, of the value of one thousand thirty-two pounds, fourteen shillings and six pence, Virginia currency, equal to three thousand four hundred and forty-two dollars and forty-one cents, United States currency, which to him he owes, and from him unjustly detains; for this, that whereas," &c., setting forth the substance of the proceedings on the attachment in Fairfax county court; "and whereas, afterwards, that is to say, at a court held for the said county of Fairfax, on the 18th day of June 1795, at the county aforesaid, the said Jonah, in open court, became security that the said Joseph would perform *285] the decree of the said court in the said suit, if against him; *in which said suit, such proceedings were had, that the said court of the county of Fairfax, on the 19th day of November, that is to say, at the county of Alexandria aforesaid, did adjudge, order and decree, that the said Robert B. Jameson & Co. should recover from the said Joseph, the said sum of 860*l.* 12*s.* 1*d.*, sterling (to be settled in Virginia currency, at the rate of twenty per cent. exchange), together with interest on the same, at the rate of five per centum per annum, from the 8th day of March 1795, until the day of pronouncing the said decree, and also their costs by them expended in the prosecution of the said bill. All which, by the record thereof, now remaining in the office of the county court of Fairfax, will more fully and at large appear. And the said Robert B. Jameson, in fact avers, that the said Joseph has not in any manner performed the decree of the said court of Fairfax county, in the cause aforesaid made, in this, that he has not paid to the said Jameson & Co., in the lifetime of the said Brown, nor to the said Jameson, who has survived the said Brown, the said sum of 860*l.*